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Case Number: 25STCV04353 Hearing Date: September 1, 2026 Dept: 514

Chairez v. American Honda Motor Co., Inc.

25STCV20343

Plaintiffs' Motion to Compel Defendant to Provide Further Responses to Requests for Production (Set Two)

Tentative Ruling

The motion is denied. The requests for sanctions are denied.

Background

This case arises out of the purchase of a 2017 Honda Pilot by Evelyn Chairez and Eddie Chairez (collectively "Plaintiffs").

On February 14, 2025, Plaintiffs filed the complaint in action against American Honda Motor Co., Inc. ("Defendant") and Does 1 through 10. On September 3, 2025, Plaintiffs filed the First Amended Complaint with the same causes of action against Defendant.

On November 5, 2025, Defendant filed an answer.

On July 14, 2026, Plaintiffs filed this motion to compel Defendant to provide further responses to Requests for Production of Documents (Set Two). Plaintiffs also seek sanctions.

On August 19, 2026, Defendant filed an opposition, along with its own request for sanctions.

No reply has been filed.

Trial is set for December 20, 2027.

Legal Standard

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must set forth specific facts showing good cause for the discovery and must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” A “misuse of the discovery process” includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subs. (d)-(h).)

Discussion

Plaintiffs move to compel further responses to Requests for Production of Documents (Set Two).

On April 21, 2026, Plaintiffs served Defendant with Request for Production of Documents, Set Two. (Abdo Decl., ¶ 2.) Request for Production No. 1 in this set requests production of the following documents:

“All DOCUMENTS within DEFENDANT’s dealer-facing web portal and all modules, applications, screens, and databases accessible through it (referred to herein as the “HONDA iN”) regarding the SUBJECT VEHICLE with all sections, modules, and data fields generated or accessible in connection with the SUBJECT VEHICLE’s VIN 5FNYP5H90HB005410. The HONDA iN includes:

- Electronic Vehicle Relationship Management (eVRM), which contains: Vehicle Summary; Battery Management Information System (BMIS) Test Records; Campaign and Recall Records; Repair Orders of all billing types (Warranty, Customer Pay, and Dealer Pay); Warranty Claims of all types (Approved, Submitted, and Unapproved), and all associated codes with their classifications and descriptions; Customer Relations Case Files (including case notes and call transcripts); Techline Case Records (including full case dialogue between dealer technicians and Honda’s technical consultants, diagnostic recommendations, and case resolution); Vehicle Production Data; Sales Records; Vehicle Service Contract (VSC) Records; and Model Features Table;
- i-Honda Diagnostic System (i-HDS) records, including Diagnostic Trouble Code (DTC) printouts, control module update records, battery test result printouts, and all vehicle-specific diagnostic data generated or stored in connection with the SUBJECT VEHICLE;

- Honda iN Messages sent or received by any Honda-authorized dealer or DEFENDANT in connection with the SUBJECT VEHICLE;
- Pre-Delivery Inspection (PDI) records, including the PDI checklist and Dealership Certification of New Vehicle Compliance for the SUBJECT VEHICLE;
- All unverified claims and repair visits recorded in the Honda iN in connection with the SUBJECT VEHICLE for which no warranty reimbursement was sought or approved, including all dealer-pay repair orders and associated records;
- All Over-The-Air (OTA/FOTA) update records reflecting any software update, firmware update, or module reprogramming pushed to or performed on the SUBJECT VEHICLE, whether through the Honda iN, the i-HDS regardless of whether such update was associated with a warranty claim or reimbursement; and
- Any other module, application, screen, database, or record accessible through the HONDA iN that was generated in connection with the SUBJECT VEHICLE, its warranty, its service history, its repair history, its campaign or recall status, its diagnostic history, or any communication between DEFENDANT, its dealers, or its technical support personnel regarding the SUBJECT VEHICLE."

On May 26, 2026, Defendant served the following objection-only response.

"AHM objects to this request on the grounds that it is overbroad in scope and not limited to matters relevant to any claim or defense in this action. AHM further objects on the grounds that it fails to reasonably particularize the documents sought, as required by Code of Civil Procedure section 2031.030(c). The request broadly demands all documents, modules, applications, screens, databases, and data fields purportedly accessible through the Honda iN, without limitation or differentiation, and improperly sweeps in categories of materials that are not generated, maintained, or contained within the Honda iN. AHM further objects to this request as it seeks categories of documents, modules, applications, screens, or data fields that are not generated for, populated with, or maintained in connection with Plaintiffs' 2017 Honda Pilot. AHM further objects to the Request to the extent it seeks documents or information not within AHM's possession, custody, or control, including dealer-generated records, dealer-maintained diagnostic data, repair information, or communications that reside exclusively with independent authorized Honda dealerships. AHM objects to this request to the extent it calls for information that is confidential, commercially sensitive, and/or proprietary."

Plaintiffs have not shown good cause for the breadth of this discovery request. Plaintiffs have not shown that this broad request seeks information that is either admissible at trial or reasonably calculated to lead to the discovery of admissible evidence. The requests do not "[d]esignate the documents" to be produced "either by specifically describing each individual item or by reasonably particularizing each category of item," as required by Code of Civil Procedure section 2031.030, subdivision (c)(1).

The objections on these grounds are sustained. The Court need not reach, and does not reach, Defendant's other objections.

It may well be that some of the documents requested may be discoverable, but the request, as presented, is not code compliant.

Both sides' requests for sanctions are denied.

Plaintiffs' request for sanctions is denied because the motion to compel is denied.

Defendant's request for sanctions is denied on the ground that the Court finds that Plaintiffs have acted with substantial justification.

Conclusion

The Court DENIES the motion of Plaintiffs Evelyn Chairez and Eddie Chairez to compel Defendant America Honda Motor Co. to provide further responses to Requests for Production of Documents (Set Two).

The Court DENIES both parties' requests for sanctions.

Moving Party is ORDERED to give notice.